

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Will Jacobson	Team: Squad #07	CCRB Case #: 202404008	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 04/24/2024 7:00 PM	Location of Incident: Southeast corner of Grand Concourse and East 149th Street	18 Mo. SOL 10/24/2025	Precinct: 40
Date/Time CV Reported Wed, 04/24/2024 7:25 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 04/24/2024 7:25 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ruben Sanchez	05059	965507	TD 11
2. PO Matthew Grant	17019	976681	111 PCT
3. PO Kirolos Ishak	26929	976720	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Robert Backiel	00000	950037	TD 11
2. PO Christian Cacace	31615	964953	TD 11
3. PO Fatmir Bibaj	29713	964929	TD 11
4. PO Amanda Ramirez	27989	976827	050 PCT
5. PO Michael Montesino	22233	976781	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Matthew Grant	Abuse: Police Officer Matthew Grant improperly used his body-worn camera.	A . Substantiated
B . PO Kirolos Ishak	Abuse: Police Officer Kirolos Ishak improperly used his body-worn camera.	B . Substantiated
C . SGT Ruben Sanchez	Abuse: Sergeant Ruben Sanchez forcibly removed an individual to the hospital.	C . Substantiated
D . PO Kirolos Ishak	Force: Police Officer Kirolos Ishak used physical force against an individual.	D . Substantiated
E . PO Matthew Grant	Force: Police Officer Matthew Grant used physical force against an individual.	E . Within NYPD Guidelines
F . PO Kirolos Ishak	Force: Police Officer Kirolos Ishak used physical force against an individual.	F . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 24, 2024, § 87(2)(b) filed this complaint with the CCRB online as a witness on behalf of an individual whose identity he did not know.

On April 24, 2024, at approximately 7 pm, on the southeast corner of Grand Concourse and East 149th Street in the Bronx, Police Officer Matthew Grand of the 111th Precinct and Police Officer Kirolos Ishak of the 40th Precinct, both on a temporary assignment to Transit District 11, detained an unknown individual who had just been ejected from the 149th Street- Grand Concourse subway station. Both officers waited several minutes into their interaction with the individual before activating their BWC (**Allegations A & B: Abuse of Authority- Improper Use of Body-Worn Camera, substantiated**). Transit District 11 Sergeant Ruben Sanchez then instructed the officers to remove the individual to the hospital (**Allegation C: Abuse of Authority- Forcible Removal to Hospital, substantiated**). While detaining her, PO Ishak pulled on the individual's arms (**Allegation D: Force-physical force, substantiated**). PO Grant pushed down on her shoulders to prevent her from walking away (**Allegation E: Force-physical force, within NYPD guidelines**). PO Ishak also attempted to trip the individual by kicking her repeatedly (**Allegation F: Force-physical force, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

No arrests were made or summonses issued as a result of this incident. The investigation obtained security footage from Hostos Community College, MTA footage, and BWC from PO Grant, PO Ishak, Sgt. Sanchez, and Lieutenant Robert Backiel and Police Officers Christian Cacace and Fatmir Bibaj of Transit District 11, as well as 50th Precinct Police Officer Amanda Ramirez and 40th Precinct Police Officer Michael Montesino of the 40th Precinct (**BR 1 – 12**). Relevant portions will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Matthew Grant improperly used his body-worn camera.

Allegation (B) Abuse of Authority: Police Officer Kirolos Ishak improperly used his body-worn camera.

Allegation (C) Abuse of Authority: Sergeant Ruben Sanchez forcibly removed an individual to the hospital.

At 0:10 of Sgt. Sanchez's first BWC activation (**BR 13**), Sgt. Sanchez approaches a woman on the platform at the 149th Street- Grand Concourse subway station. They interact with each other. At 1:00, Sgt. Sanchez activates his BWC and ejects the woman from the train station. At 1:58, Sgt. Sanchez, after escorting her up the stairs, says, "Miss, you can't come back down here." At 2:08, he says, "you're harassing people."

At 0:10 of the surveillance video from Hostos Community College (**BR 14**) shows officers escorting the woman out of the station. The time is 6:42 pm. At 0:35, PO Ishak, standing on the street with PO Grant, points to the opposite side of the sidewalk while speaking with the woman. At 1:33, the woman raises her arms in the air as she speaks to the officers right outside the station entrance. At 2:00, the woman walks towards the steps but then walks back. At 2:25, she approaches PO Ishak and PO Grant as they stand by a food truck. PO Ishak gestures down the street. The woman stands there and continues to speak to them. At 3:40, she points repeatedly towards the stairs. A second five-minute surveillance clip (**BR 15**) shows the woman walking away from the officers but then turning back to speak to them again at 0:03. At 0:14, she comes up to PO Grant and points at him. At 0:30, she walks to the other side of the sidewalk but then yells in their direction. At 0:37, she walks back across to speak to them and continues to make gestures. At 1:05, PO Grant points again and she walks away for a second before turning around and continuing to speak to them. At 2:03, PO Grant and PO Ishak activate their BWC, walk up to the woman, and

handcuff her. This is approximately seven minutes after the woman first comes upstairs and engages with PO Ishak.

At 1:00 of PO Grant's BWC (**BR 16**), at 6:49 pm, PO Grant and PO Ishak handcuff the woman. At 1:06, PO Ishak says, "you want to play that game?" PO Ishak escorts the woman to the other side of the sidewalk. At 2:39, PO Grant says over the radio, "That same EDP that you had downstairs, we have her in cuffs now. Could you guys come upstairs, please?" While he says this, the woman yells "what the fuck" and speaks largely incoherently. At 3:33, Sgt. Sanchez approaches the scene. At 3:40, PO Grant talks over the woman as she yells "Yemenese bitch." He says, "while we were ordering our sandwich, she was literally sitting there, yelling at us, getting in his face." At 3:46, Sgt. Sanchez interrupts PO Grant and says "EDP, EDP her." At 9:40, while the officers stand with the woman, Sgt. Sanchez says, "The car's coming, we're not gonna wait for a bus." At 18:00, PO Ishak places the woman into a police vehicle. The officers drive the woman to § 87(2)(b) Hospital. At 20:34, PO Ishak and PO Grant escort the woman into § 87(2)(b) Hospital.

PO Ishak activates his BWC (**BR 17**) at about the same time as PO Grant, as soon as he and PO Grant decide to handcuff the individual, one minute into his video.

Sgt. Sanchez (**BR 18**) stated that he observed a possible dispute brewing between this individual and two other people on a platform inside the 149th Street-Grand Concourse train station. When he approached, one of the other people stated the individual in question was harassing them, without any further explanation. The individual made people uncomfortable on this platform through her loud, aggressive incoherent statements. Sgt. Sanchez did not understand anything she was saying. Sgt. Sanchez told her not to argue with other people and to leave them alone, but the individual continued to speak to the other people on the platform, so Sgt. Sanchez ejected her from the station.

Approximately five minutes later, Sgt. Sanchez was informed that the individual was upstairs, out of the station, in handcuffs. Sgt. Sanchez went upstairs to investigate the situation and saw PO Grant and PO Ishak standing with her, handcuffed, outside; PO Grant told Sgt. Sanchez that they were ordering food before she became aggressive, getting in their faces, and cursing at them. Because Sgt. Sanchez felt that the woman was showing active aggression and violent tendencies, he called EMS to the scene to remove her to the hospital. He clarified that her aggression was her yelling in people's faces, which he felt was violent behavior. He mainly based his decision to remove her on what PO Grant told him, although he also believed she exhibited aggression and incoherence on the platform downstairs. Through all these factors, he believed that she was an immediate threat of violence. He had not understood anything that she said to him on the platform, nor could he recall if PO Grant or PO Ishak told him about any threats, or any of the content of what she said to them. However, he believed her behavior was consistent with that of somebody who might need psychological assistance.

PO Ishak (**BR 19**) stated that while he and PO Grant were on their meal break, they saw officers escort this woman out of the station and tell her she could not re-enter the station. The individual then came over to the two officers and began cursing at them. She called PO Grant the "N-word." PO Ishak told the woman to walk away multiple times, but she kept approaching the officers and cursing at them. PO Ishak figured that she might have a mental illness because she was screaming, and cursing, and for no other reason. The woman made no threats to herself or towards anyone else during this interaction. After approximately ten minutes of listening to her speak, PO Ishak activated his BWC and handcuffed the woman with the assistance of PO Grant. He waited ten minutes because at first, he was not taking police action. He believed that the situation escalated to the point of needing police action approximately six to seven minutes after this interaction began. He handcuffed her because she was disorderly through her yelling, cursing, and causing a crowd to form. He did it for the safety of himself and his partner, and people around them. She committed disorderly conduct through these actions. PO Ishak and PO Grant deferred to Sgt. Sanchez's call to remove the woman to the hospital.

PO Grant's statement (**BR 20**) was mostly consistent with PO Ishak's, with the following

exceptions. Nothing that the woman did rose to the level of criminality, but PO Grant had no idea what she would have done if they left her alone. He believed that she acted threatening through her yelling and cursing and refusal to walk away from the officers. Although she had not committed any crimes, he believed that the next step after handcuffing her would possibly be to call EMS. His interaction with this woman became adversarial before he even activated his BWC because she was already yelling at him.

Jones v. New York 2019 U.S. Dist. LEXIS 1634118 (**BR 21**) states that to handcuff and detain, even briefly, a person for mental-health reasons, an officer must have probable cause to believe that the person presented a risk of harm to herself or others. It further defines this serious injury to others as a substantial risk of physical harm as manifested by homicidal or other violent behavior by which others are placed in reasonable fear of serious physical harm. Irrational or delusional behavior and mental illness alone are insufficient to justify an arrest, as a person may be annoyed, uncooperative, and irrational without presenting a danger to herself or violence to others.

Patrol Guide Procedure 212-123 (BR 22) states that members of the service should record any interactions that escalate to become adversarial or may hold evidentiary value.

Patrol Guide Procedure 221-13 (BR 23) provides guidance on how members of the service should safeguard a mentally ill or emotionally disturbed person who does not voluntarily seek medical assistance. An emotionally disturbed person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B be substantiated.**

§ 87(2)(g)

Sgt. Sanchez ordered his officers to take the woman directly to the hospital,

§ 87(2)(g)

It is therefore recommended that **Allegation C be substantiated.**

Allegation (D) Force: Police Officer Kirolos Ishak used physical force against an individual.

Allegation (E) Force: Police Officer Matthew Grant used physical force against an individual.

Allegation (F) Force: Police Officer Kirolos Ishak used physical force against an individual.

§ 87(2)(b)

(**BR 24**) stated that at approximately 7 pm, on his way to the 149th Street- Grand Concourse subway station, he saw a woman on her knees, facing a wall, as PO Grant and PO Ishak pushed down on her shoulders. They also pressed her forward into the wall. The woman repeatedly told the officers that she would get up on her own and walk to a police car, but PO Grant and PO Ishak twisted her arms around. It looked like they were trying to stand the woman back up, but whenever she did get up, PO Ishak kicked his leg out and tripped her back down to the floor multiple times. The officers then turned the woman to face their direction, which involved twisting her arms, shoulders, and back, all while she was handcuffed already. PO Grant and PO Ishak then lifted the woman off the ground, grabbing her by her elbow and legs, and carried her to a police vehicle. PO Ishak shoved the woman's legs into the vehicle after she refused to put them inside at first.

At 1:20 of PO Grant's BWC (**BR 16**), PO Ishak grabs the woman's left arm and escorts her to a wall of a building across the sidewalk. At 1:28, the woman curses as PO Ishak and says, "get the fuck out of here...(unintelligible) innocent Muslim bitch," as he holds her left arm. At 1:34, he turns her around and pushes her towards the wall. The woman turns around slightly and moves around as PO Ishak attempts to gain control of her. At 1:42, PO Ishak forcefully yanks the woman forward by her right arm as she tries to take a step back. At 1:46, PO Grant says, "Shak, shak," and places an arm on the woman's shoulder. At 2:00, the woman yells at PO Ishak, and PO Ishak tells PO Grant to call a supervisor. At 2:35, the woman walks away and PO Ishak and PO Grant both grab onto her and try to hold her in place. At 3:04, PO Grant tells the woman to stop moving. At 5:14, the woman requests to be held in a cleaner area, not in the corner. Sgt. Sanchez tells PO Ishak to put her in the corner. At 5:45 the woman takes a step forward and PO Ishak yanks her back again by pulling on her right shoulder. At 6:28, the woman says she has every right to turn around because she is respectful. At 6:37, as the woman complains about her shoulder, PO Ishak twists her arms back and forth. Sgt. Sanchez then holds her in place and says "it's not that hard." The woman then wriggles around from side to side. At 9:57, PO Ishak moves his body forward and the woman asks what he is doing. He smiles. At 10:23, PO Ishak shifts his body forward towards the wall repeatedly. At 10:25, the woman says, "my foot now?" At 13:00, the woman yells that her arm hurts as she moves around from side to side. At 13:20, she slides down towards the ground as PO Grant and PO Ishak attempt to get her back up. At 13:43, the woman says this was a disagreement as she leans down towards the ground. At 14:00 the woman bends forward as PO Grant and PO Ishak try to pull her back up repeatedly. At 14:14, PO Ishak says, "Do you want me to put her on the floor, sarge?" At 14:15, PO Grant and PO Ishak push the woman to the ground. PO Grant puts his right hand on her right shoulder and PO Ishak puts his left hand on her left shoulder. At 15:20, the woman complains that the officers are pushing her hand and that it hurts. At 15:50, the woman yells that she can get up and does not need assistance as PO Ishak grabs onto her left shoulder and arm. At 17:06, PO Grant and PO Ishak lift the woman up and escort her towards a police vehicle across the sidewalk. At 17:21, as they escort her, she drops towards the floor repeatedly as PO Grant and PO Ishak try to get her back up. At 17:32, PO Grant and PO Ishak pick her up by her legs and carry her towards the vehicle. At 17:57, PO Ishak places the woman in the police vehicle, but she stands back up. At 18:13, PO Ishak pushes the woman fully into the vehicle.

At 10:20 of PO Ishak's BWC (**BR 17**), PO Ishak is seen in the reflection of the glass, staring towards the ground and lurching forward as he holds the woman's left arm with his right hand. At 10:26, the woman says, "my foot now? My fucking foot, bitch? Try it again. At 10:37, as PO Ishak lurches forward again, the woman says, "Try it again, my foot is here, bitch."

PO Ishak (**BR 19**) stated that when he first guided the woman towards the wall, he did so because he did not want her to spit on him. She was cursing at him, and he thought she might spit on him because he thought she might be emotionally disturbed based on the way she had been acting. While PO Ishak and PO Grant had her detained by the wall, the woman repeatedly kicked out at the officers' feet, tensed her body and walked away. She continuously dropped her body weight. Eventually, the officers decided to place the woman on the ground to prevent her from walking away. PO Ishak tried to use his stiff foot to guide her to the ground and tripped her foot to get her to the ground. He did this because all the officers were attempting to guide her to the ground. At certain points, PO Ishak grabbed the woman's arms and twisted them back and forth to prevent her from walking away. When it was time to place the woman in a vehicle, PO Ishak and PO Grant lifted her up and escorted her by the arm until she dropped her body weight and fell to the floor. The officers then carried her by picking her up and walking her over to the vehicle. The woman resisted going into the vehicle so PO Ishak grabbed her feet and angled them so they would stay in the vehicle.

PO Grant's statement (**BR 20**) was consistent with PO Ishak's.

Patrol Guide Procedure 221-01 (**BR 25**) provides guidelines on the use force. Members of the service will use only the reasonable force necessary to gain control or custody of a subject, and

when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the circumstances, actions taken by the subject, duration of the action, whether the subject is actively resisting custody, the number of subjects in comparison to the members of service, the size, age, and condition of subject in comparison to the member of service, and the immediacy of the perceived threat or harm to the subject, members of the service, and bystanders, among other factors.

Patrol Guide Procedure 221-13 (**BR 23**) states that members of the service will use only the reasonable force necessary to gain control or custody of a subject who is emotionally disturbed. Members of the service should avoid any action which might agitate or provoke the EDP, if possible.

PO Ishak pulled on the woman's arms as shown at 1:42 and 6:40 of PO Grant's BWC, in the first occasion even eliciting a reaction from PO Grant. While the woman was moving around, PO Grant and Sgt. Sanchez, when using force, were able to gain control of her without resorting to the level of force used by PO Ishak in these instances. § 87(2)(g)

It is therefore recommended that **Allegation D** be **substantiated**.

PO Grant assisted in restraining the individual once she was in handcuffs by holding onto her arms and pressing down on her shoulder once she was on the ground. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as within NYPD guidelines.

Although video evidence does not comprehensively capture it, PO Ishak, as per his own statement, and that of § 87(2)(b) kicked the woman to trip her to the ground. § 87(2)(g)

It is therefore recommended that **Allegation F** be **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 29**).
- Sgt. Sanchez has been a member of service for six years and this is the first complaint to which he has been party.
- PO Grant has been a member of service for one year and this is the first complaint to which he has been party.
- PO Ishak has been a member of service for one year and has been subject to one other CCRB complaint and eleven allegations. To date, this complaint is still open.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 19, 2024, no Notice of Claim has been filed in regard to this incident (**BR 30**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 7

Investigator:	<u>Will Jacobson</u>	<u>Inv. Jacobson</u>	<u>11/21/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Vanessa Rosen</u>	<u>Manager Vanessa Rosen</u>	<u>November 21, 2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date